MOUNT OLIVE · JEFFERSON COUNTY · ALABAMA

What happened to Thomas Graham

About 1823 to January 1864

In the autumn of 1863 a farmer named Thomas Graham was living in the woods above Mount Olive, in the north end of Jefferson County, Alabama. He had a wife and eight children in a house he could not go to. He was about forty years old.

He was hiding from the Confederate army.

THE GROUND HE CAME FROM

His people had been in that county since it was made. His grandfather Thompson came out of South Carolina and bought eighty acres on Village Creek in 1825, land that is now the Woodlawn neighbourhood of Birmingham, back when Birmingham did not exist. He sold it two years later and moved north to the hills around Mount Olive.

In June 1836 Thompson and his son William walked into the federal land office at Tuscaloosa four days apart and each paid fifty dollars and ten cents for forty acres. Four months later Ezekiel Staggs bought the forty directly adjoining Thompson's, and two days after that a neighbour named James Goins bought the forty that he would sell on to the family eighteen months later. These were not strangers. The 1830 census of Jefferson County lists the Grahams, the Staggses, the Jameses and the Belchers within a few lines of each other, which means within a few farms, and over the next three generations those four families married into one another over and over.

Thomas was born into that in about 1823. In 1845 he married Nancy Ann James, whose father had been living down the road since before either of them could remember. They had eight children. In December 1854 he bought eighty acres of his own for ten dollars and eleven cents, and in December 1858 he bought eighty more. He was a man with

land, a wife, and a house full of children, and he was about thirty-eight years old when the war started.

HE SAID HE WOULD NOT GO

Alabama left the Union in January 1861, but the hill counties of the north were never much persuaded. There were few large farms up there and almost no enslaved people, and a great many men could not see what the quarrel had to do with them. Thomas was one of them. His wife said so under oath, eleven years later:

> I was in favor of the union from the commencement of the war to the end of the war. My feelings was all the time in favor of the union cause and desired the union army to succeed and put down the rebellion, and I expressed my sentiments publicly to both sides in that way. I told my friends and relatives not to go into the rebel army, but to keep out of it. I told my husband not to go into the rebel army, and he always told me that he would not until he was conscripted.
>
> Nancy Ann Graham, sworn at Elyton, 26 July 1872

In April 1862 the Confederacy passed the first conscription act in American history. Men of military age were no longer asked. Thomas kept his word in the only way left to him. He went into the woods.

LYING OUT

There was a phrase for it in those hills. Men who would not serve were said to be *lying out*, and there were enough of them that the Confederate cavalry made a regular business of hunting them. The pressure was not applied to the man. It was applied to his family.

> I heard that while the Claimants husband was lying out in the woods to keep from being Conscripted and forced into the rebel army, that if the Claimants husband did not come in and give up and go to the rebel army that they would go to the Claimants house and remain till they the Cavalry eat up everything that she had, and under these threats and with the promise that if he would come in that they would give him a furlough so that he could prepare himself to go to the rebel army, the husband of the claimant came in and was put in jail as stated. The claimant was opposed to her husband doing this. I know this of my own knowledge.
>
> Julian Nail, sworn at Elyton, 1872

Read that twice. They told him that if he did not come in, they would sit in his house and eat his family's food until it was gone. And they told him that if he did come in, they would give him a furlough so he could get his affairs in order.

He came in. There was no furlough. They put him in the jail at Elyton.

The man who swore to that had reason to know. Julian Nail had hidden in those same woods, had been fed by Nancy while he was hiding, and later made his way to Union lines and served twelve months in Company D of the First Alabama Cavalry, United States Army. He had also married Nancy's sister.

THE JAIL AT ELYTON

Nancy went to him. So did his father.

> I saw my son Thomas Graham nearly every day from the time that the war commenced up to the time that he was arrested and sent off to the Army. I saw him one time after he was arrested, he was then in jail at Elyton. I heard that he had been arrested by the conscript officers and put in jail and I went with his wife the claimant to Elyton to see him and when we got to Elyton we found him in jail and he told us that he had been arrested by the conscript officers and put in jail and that he would be sent off to the Army in a few days. **I never saw him after that time.**
>
> William Graham, aged 68, the father of the deceased, sworn 1873

Nancy said he had not changed his mind. He told her, in the jail, that he was opposed to the war and would not fight for the rebel cause. He was not allowed to go home. They sent him off a few days later.

TALLADEGA, AND THEN CHATTANOOGA

He went first to the conscript camp at Talladega, about seventy miles southeast, where Alabama gathered the men it had taken. From there he was forwarded to the army at Chattanooga.

He did not last. The finding of fact, written in Washington by the three Commissioners of Claims who later reviewed his widow's case, puts it in one sentence:

> Her husband was arrested by the Confederates in the fall of '63 & forced to go to the Conscript Camp at Talladega & then to Chattanooga where he died the day after his arrival in Jany '64.
>
> Commissioners of Claims, on claim no. 7100

The day after he arrived. He had been taken out of his house, held in a county jail, marched seventy miles to a camp, and sent on to an army he had spent two years refusing to join, and then he was dead. Whether it was disease, which killed far more men than bullets did, or something else, no record says. He was about forty. His youngest child was eighteen months old.

The family has always said he was buried in a military cemetery at Chattanooga. That may well be true, and it is the one part of this account that no document confirms.

WHAT NANCY DID

She was about thirty-eight, with eight children and a farm.

In the last days of March 1865, with the war nearly over, Union cavalry under General James Wilson rode through Jefferson County on their way to Selma and took what was left: a mare, a mule, four hundred bushels of corn, three hundred pounds of bacon, a thousand pounds of fodder, eleven bushels of oats, and a saddle and bridle. They were the army her husband had refused to fight, and they cleaned out her barn.

Six years later Congress created a commission to pay loyal southerners for property the Union army had taken, and Nancy filed. To be paid she had to prove she had been for the Union the whole time, which meant proving in sworn detail that her husband had been dragged into the Confederate army rather than walking into it. That is the only reason any of this was ever written down.

She could not bring her witnesses to Washington. The file records why, in the plainest words in it: **she was too poor to procure the attendance of said witnesses.** So the testimony was taken at Elyton instead, and the neighbours came and swore to what they had seen.

The Commissioners allowed her five hundred and fifty-five dollars and fifty cents. They thought she had overstated the corn and the bacon, judged the mare not worth more than a hundred dollars at eleven years old, and refused the saddle. It was still more than four

times the hundred and twenty-five dollars at which her husband's entire estate had been valued.

She never remarried. In 1877 she filed a homestead claim on forty acres in her own name, and two years later her son Isaac filed on the eighty beside hers. She lived until 1911 and is buried at Graham Cemetery, forty-seven years a widow.

THE CHILDREN

In 1873 she listed them for the commissioner, by name and age, and said they were all living and all at home with her: William, twenty-seven. Thomas, twenty-five. Sarah, twenty-three. John, twenty-one. Isaac, nineteen. Rebecca, seventeen. Nancy, fifteen. And last, aged ten, a boy the clerk wrote down as Minnie.

That was I. N. Graham, known in the family all his life as Nin. He was about two years old when they took his father, and too young to remember him. He grew up, married Martha Melissa Brooks, and had seven children of his own, and the line that reaches the Grahams of Mount Olive today runs straight through that ten-year-old boy at the bottom of his mother's list.

She also told the commissioner something easy to read past. Her two eldest sons, William and Thomas, had been seventeen and fifteen when their father was taken, and she said they never went into the rebel army, that they stayed at home all the time and said they never intended to fight against the United States government. After what had been done to her husband, she kept her boys out of it.

WHY NOBODY KNEW

The family history that has been passed around for forty years gives him one line. It says he died in 1864 in the Civil War and was buried at Chattanooga, and leaves you to assume he went like everyone else went. He did not. He hid in the woods until they starved his family out, he was lied to about a furlough, he was jailed in his own county, and he was sent to his death in an army he had told his wife and his father and a jailhouse full of men that he would not fight for. All of it was written down in 1872 and 1873, in sworn testimony, in a federal file that sat unread for a hundred and fifty years.

WHERE THIS COMES FROM

Every quotation in this account is from sworn testimony in the Southern Claims Commission file of Nancy Ann Graham, claim number 7100, Jefferson County, Alabama. The file runs to sixty-two pages and is held by the National Archives, Microfilm Publication M2062, Record Group 217. The depositions were taken at Elyton, the county seat before Birmingham, by Special Commissioner John Brown in July 1872 and again in 1873.

- **Nancy Ann Graham**, the widow, deposed 26 July 1872 and again in 1873. She signed with her mark.
- **Julian Nail**, farmer, aged about forty, of Jefferson County. Served twelve months in Company D, First Alabama Cavalry, United States Army, under Colonel Spencer; honourably discharged at Huntsville. Married Nancy's sister.
- **J. W. Rowe**, farmer, who had himself been conscripted, sent to Talladega, and escaped to the woods before reaching Union service.
- **William Graham**, aged sixty-eight, the father of the deceased. He signed with his mark.
- **The Commissioners of Claims**, Asa Owen Aldis, James B. Howell and Orange Ferriss, whose written finding of fact appears on the claim summary sheet.

The estate record is a certified transcript made by Judge John C. Morrow of the Jefferson County Probate Court on 19 November 1873, bound into the same file. It records that William Graham was appointed administrator of his son's estate on 26 February 1866, that the estate was worth about one hundred and twenty-five dollars, and that the final settlement was made on 15 January 1869. The eight heirs are listed by name.

Other details come from the 1830 and 1850 federal censuses of Jefferson County, from federal land patents and the Tuscaloosa land office tract books for Township 15 South, Range 3 West, and from the compiled Graham family history, pages 111 to 126.

One honest caution. The family has always said Thomas was buried in a military cemetery at Chattanooga, and the sworn testimony says he died there in January 1864. By that month Chattanooga was held by Union forces and the Confederate army had withdrawn into Georgia, which leaves a question nobody has yet answered about exactly where he died and where he lies. The burial is the single part of this story that rests on family memory alone. Everything else in these pages is in a document somebody swore to.